

settlor in his lifetime, the undisposed of interest in the proceeds of sale will result to the settlor as personal estate, and go to his personal representative, even though the trust for sale was not to arise until after the settlor's decease (*b*). If however the trusts declared by the testator so entirely fail as not to call for a conversion, then the whole estate will result to the heir as realty, and descend upon his heir (*c*), though the estate may by mistake of the trustees have been actually sold (*d*), and if the testator was seised *ex parte maternâ*, the equitable interest will descend to the testator's heir in the maternal line (*e*).

Sale by Court. — If real estate be devised to A. subject to a charge of debts, and it is sold by the *Court*, the surplus money, it seems, will not be considered personal estate, so as to devolve on the devisee's *personal representative*, but will descend to his *heir* (*f*); [and the same rule applies to the surplus arising from the sale of mortgaged property under an order made in a foreclosure action (*g*).]

But in a sale of an infant's estate under an order of the Court, which finds that the sale would be for his benefit, the conversion is absolute, and the proceeds are personalty (*h*).

Under Partition Act. — In the sale of the property of an infant (*i*), [or lunatic (*j*).] under the Partition Act, 1868, which incorporates some of the provisions of the Leases and Sales of Settled Estates' Act, the interest of the infant [or

Pryme, 2 Coll. 204; Bagster v. Fackereel, 26 Beav. 469; Wilson v. Coles, 28 Beav. 215; Hamilton v. Foot, 6 L. R. Eq. 572; The Attorney-General v. Lomas, 9 L. R. Ex. 29.

(*b*) Clarke v. Franklin, 4 K. & J. 257.

(*c*) Smith v. Claxton, *ubi supra* (where the doctrines of the court are clearly stated); Bagster v. Fackereel, 26 Beav. 469; Chitty v. Parker, 2 Ves. jun. 213; Buchanan v. Harrison, 1 J. & H. 662.

(*d*) Davenport v. Coltman, 12 Sim. 610.

(*e*) Wood v. Skelton, 6 Sim. 176; see Buchanan v. Harrison, 1 J. & H. 673.

(*f*) Cooke v. Dealy, 22 Beav. 196; [Scott v. Scott, 9 L. R. Ir. 367;] but see Flanagan v. Flanagan, cited Fletcher v. Ashburner, 1 B. C. C. 500; and *Re Cross's Estate*, 1 Sim. N. S. 260; and see Crowther v. Bradney, 28 L. T. N. S. 404.

(*g*) Scott v. Scott, 9 L. R. Ir. 367; Jermy v. Preston, 13 Sim. 356; Richardson v. Nixon, 2 J. & L. 250, 250.]

(*h*) Steed v. Preece, 18 L. R. Eq. 192; and see Batteste v. Maunsell, 10 L. R. Eq. 97, 314.

(*i*) Foster v. Foster, 1 Ch. D. 588; but see Arnold v. Dixon, 19 L. R. Eq. 113.

(*j*) *Re Barker*, 17 Ch. D. 241;